

Ross on Crime

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Public interest immunity

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Public interest immunity

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[16.8300] General rule

In *Sankey v Whitlam* (1978) 142 CLR 1; 21 ALR 505 Gibbs ACJ said (at 38–39; 526):

The general rule is that the court will not order the production of a document, although relevant and otherwise admissible, if it would be injurious to the public interest to disclose it. However the public interest has two aspects which may conflict. These were described by Lord Reid in *Conway v Rimmer* [1968] AC 910 at p 940 as follows: “There is the public interest that harm shall not be done to the nation or the public service by disclosure of certain documents, and there is the public interest that the administration of justice shall not be frustrated by the withholding of documents which must be produced if justice is to be done”. It is in all cases the duty of the court, and not the privilege of the executive government, to decide whether a document will be produced or may be withheld. The court must decide which aspect of the public interest predominates, or in other words whether the public interest which requires that the document should not be produced outweighs the public interest that a court of justice in performing its functions should not be denied access to relevant evidence. In some cases, therefore, the court must weigh the one competing aspect of the public interest against the other, and decide where the balance lies. In other cases, however, as Lord Reid said in *Conway v Rimmer* [1968] AC 910 “the nature of the injury which would or might be done to the nation or the public service is of so grave a character that no other interest, public or private, can be allowed to prevail over it”. In such cases once the court has decided that “to order production of the document in evidence would put the interest of the state in jeopardy”, it must decline to order production.

[16.8305] Legislation

Uniform Evidence Acts s 130 sets out exclusion of evidence of matters of state. For a discussion of the privilege in this context, see *New South Wales v Public Transport Ticketing Corp* [2011] NSWCA 60; *Murdesk Investments Pty Ltd v Secretary to Department of Business and Innovation* [2011] VSC 436; *Derbas v The Queen* [2012] NSWCCA 14; *Attorney General (NSW) v Lipton* [2012] NSWCCA 156.

The party seeking exclusion bears the burden of proof on the balance of probabilities: s 142(1).

[16.8310] “Crown privilege” is a misleading description

In *Rogers v Home Secretary* [1973] AC 388 (HL) the Lords did not agree with the use of the term Crown privilege. Lord Reid said (at 400) it was “wrong and may be misleading”. Lord Pearson stated (at 406) it “is not accurate”. Lord Simon stated that it was (at 406–407) “a misnomer and misleading”.

[16.8315] How the claim arises

Generally the claim is made by or on behalf of a minister after a subpoena is received asking for the production of documents thought to be sensitive. In *Alister v The Queen* (1984) 154 CLR 404; 50 ALR 41 a subpoena was served on the officer in charge of ASIO.

See also

Subpoena at [19.6300].

However a court can invoke the principle of its own motion.

Stephen J said in *Sankey v Whitlam* (1978) 142 CLR 1; 21 ALR 505 (at 58–59):

A claim to the privilege is not essential to the invoking of Crown privilege. In cases of defence secrets, matters of diplomacy or affairs of government at the highest level, it will often appear readily enough that the balance of public interest is against disclosure. It is in these areas that even in the absence of any claim to Crown privilege (perhaps because the Crown is not a party and may be unaware of what is afoot), a court, readily recognising the proffered evidence for what it is, can, as many authorities establish, of its own motion enjoin its disclosure in court.

[16.8320] Sufficiency of affidavit claiming immunity

Mason J said in *Sankey v Whitlam* (1978) 142 CLR 1; 21 ALR 505 (at 96):

An affidavit claiming Crown privilege should state with precision the grounds on which it is contended that documents or information should not be disclosed so as to enable the court to evaluate the competing interests.

The affidavit to explain the claim more fully may itself be confidential, where the explanation, if made public, would threaten the protection of the public interest for which immunity is claimed: *R v Rusmanto* (1997) 6 NTLR 68 (Thomas J).

[16.8325] Onus of proof

The body claiming immunity must demonstrate the need for that protection.

In *CJC v Collins* (1994) 74 A Crim R 63 (Qld CCA) Macrossan CJ and McPherson JA said (at 66):

It will be necessary for the body claiming immunity from disclosure to demonstrate the need for protection which its statutory function requires and establish the strength of that need in the particular case: cf Mason J in *Sankey v Whitlam* (1978) 142 CLR 1; 21 ALR 505 (at 96).

[16.8330] Can the judge “take a peep” at the documents

The expression comes from *Burmah Oil Co Ltd v Bank of England* [1980] AC 1090; [1979] 3 All ER 700 (HL) where Lord Edmund-Davies said (at 1129; 721):

No judge can profitably embark on such a balancing exercise without himself seeing the disputed documents. May he take a peep?

(His Lordship did think it right to “take a peep”.)

In *Alister v The Queen* (1984) 154 CLR 404; 50 ALR 41, the judges had a peep and with the exception of Murphy J decided that the ASIO documents about the witness Mr Seary would not have helped the appellant.

In *Beneficial Finance Corp Ltd v Australian Federal Police* (1991) 31 FCR 523; 58 A Crim R 1; 103 ALR 167 (FCA) the primary judge had taken a peep at documents obtained by search warrants. Burchett J, with whom Shepherd J agreed, said that the judge had a discretion to take a peep and (at 551–552; 195–196; 29–30) analysed the law.

In *HT v The Queen* (2019) 269 CLR 403; 278 A Crim R 133; [2019] HCA 40, it was held that the public interest immunity does not permit material to be disclosed to one party (in the instance the prosecution) and kept confidential from the other party.

[16.8335] “Class” or “contents” claim for immunity

In *Commonwealth of Australia v Northern Land Council* (1993) 176 CLR 604; 112 ALR 409 the majority said (at 616; 413):

The classification of claims for public interest immunity in relation to documents into “class” claims and “contents” claims has been described as “rough but accepted” (*Burmah Oil Co Ltd v Bank of England*, [1980] AC 1090; [1979] 3 All ER 700 at 1111 per Lord Wilberforce). It serves to differentiate those documents the disclosure of which would be injurious to the public interest, whatever the contents, from those documents which ought not to be disclosed because of the particular contents.

The court approved the dictum of Gibbs ACJ in *Sankey v Whitlam* (1978) 142 CLR 1; 21 ALR 505 when he said (at 42):

I consider that although there is a class of documents whose members are entitled to protection from disclosure irrespective of their contents, the protection is not absolute, and it does not endure for ever. The fundamental and governing principle is that documents in the class may be withheld from production only when this is necessary in the public interest. In a particular case the court must balance the general desirability that documents of that kind should not be disclosed against the need to produce them in the interests of justice. The court will of course examine the question with especial care, giving full weight to the reasons for preserving the secrecy of documents of this class, but it will not treat all such documents as entitled to the same measure of protection—the extent of protection required will depend to some extent on the general subject matter with which the documents are concerned. If a strong case has been made out for the production of the documents, and the court concludes that their disclosure would not really be detrimental to the public interest, an order for production will be made.

In *R v Polley* (1997) 68 SASR 227; 93 A Crim R 325 (CCA) Mullighan J said (at 245; 343):

There is a heavy burden on any authority which claims class immunity: *Rogers v Home Secretary* [1973] AC 388 at 400 per Lord Reid and *Sankey v Whitlam* (at 62–63) per Stephen J. The test is whether withholding of the documents is really necessary for the proper functioning of the State or the public service: see *Conway v Rimmer* [1968] AC 910 where it was held that only documents relating to decision making at the very highest levels could lay claim to automatic class immunity. Usually such a claim is harder to justify in relation to the documents of the lower levels of government. Indeed, Lockhart J in *Zarro v Australian Securities Commission* (1992) 36 FCR 40 at 46 expressed the view that the class doctrine is confined to rare cases of documents involving high government policy and decision-making.

In *Chief Constable of West Midlands Police; Ex parte Wiley* [1995] 1 AC 274, the House of Lords rejected the contention that documents of the Police Complaints Authority should not be produced on the basis of a class based public interest immunity: see Lord Woolf at 305–306.

[16.8340] Court function is a two stage process

In *CJC v Collins* (1994) 74 A Crim R 63 (Qld CA) Macrossan CJ and McPherson JA said (at 66):

The court's decision will involve a balancing exercise once it has been decided that a public policy entitlement to protection exists. At this point the policy need for protection of the due

functioning of the body's process will be balanced against the conflicting need to ensure that the demands of justice are served with protection offered to the individual rights involved. This balancing exercise has been described as a two-stage process. At the first stage the concern is to determine whether a valid claim to public policy immunity arises by reason of the intended statutory function of the body on whom the demand for disclosure is made and then, in the particular circumstances of the case, there follows a weighing of the relative strength of that need and the competing need for reasons of justice to give access to the information which is sought: *Sankey v Whitlam* (1978) 142 CLR 1; 21 ALR 505; *Alister v The Queen* (1984) 154 CLR 404.

In *Haydon v Magistrates Court* (2001) 87 SASR 448 (FC) Perry J with whom the others agreed said (at 463 [66]):

7. In all cases where the question of public interest immunity arises, it is for the court and not for the executive government to determine whether or not the immunity exists and should be enforced.
8. In determining a claim of public interest immunity, the court undertakes a balancing exercise, weighing on the one hand the asserted public interest against disclosure against the public interest in ensuring that the court has access to all relevant evidence.

[16.8345] Public interest immunity upheld

Jarvie v Magistrates Court (Vic) [1995] 1 VR 84 (FC): identity of undercover police.

NTIEU v Commonwealth (2001) 111 FCR 583; 188 ALR 614 (Weinberg J): cabinet documents.

Haydon v Magistrates Court (2001) 87 SASR 448 (FC): video and transcript of record of interview made by a police informer in the Snowtown murder case.

In *DPP v Selway* (2007) 16 VR 508; 212 FLR 345; 172 A Crim R 359 (Cummins J) the accused was charged with murder. The accused subpoenaed surveillance methodology from the police. The defence hoped to prevent the prosecution from leading evidence of the accused's statements. The police claimed public interest immunity. His Honour refused access to the material. His Honour (at [4]–[9]) interpreted “on the cards.”

[16.8350] Public interest immunity not upheld

Sayer v National Mutual Life Assoc of A'Asia Ltd (1994) 34 NSWLR 132 (CA): the identity of former clients of a solicitors who were trying to recover their money or property from the solicitor's receiver.

Esso Australia Resources Ltd v Plowman (1995) 183 CLR 10; 128 ALR 391: evidence given privately to an arbitrator.

CJC v Collins (1994) 74 A Crim R 63 (Qld CA): on an assault police charge, the policeman's account of the incident to the Criminal Justice Commission.

Conway v Rimmer [1968] AC 910 at 952 (HL); *Sankey v Whitlam* (1978) 142 CLR 1; 21 ALR 505 at 96 per Mason J: Cabinet documents of purely historical significance.

[16.8355] Contempt by publication

A newspaper published documents which a judge had ruled were covered by public interest immunity but were necessary for an appeal subject to restriction. The reporter could not verify the judge's ruling. It was held there was no contempt: *Attorney-General v Newspaper Publishing Pty Ltd* [1997] 1 WLR 926; 2 All ER 159 (CCA).

[16.8360] Public interest immunity cannot be waived

In *DPP, Reference under s 639A of Criminal Code; Re Y* (1998) 19 WAR 47; 100 A Crim R 166 (FC) the court said (at 54; 174):

There is indeed ample authority that public interest immunity cannot be waived: see, eg, *R v Lewes Justices; Ex parte Home Secretary* (at 407); *Air Canada v Secretary of State for Trade (No 2)* [1983] 2 AC 394 at 436; *Science Research Council v Nasse* [1980] AC 1028 at 1074. As was observed by Viscount Simon LC, once it is shown that there is a public interest worthy of protection, the court should insist on its protection which is “quite unconnected with the interests or claims of the particular parties in litigation”: see *Duncan v Cammell Laird & Co Ltd* [1942] AC 624 at 642.

In *NTIEU v Commonwealth* (2001) 111 FCR 583; 188 ALR 614 Weinberg J held (at 595; 626 [48]):

Waiver of public interest immunity is not possible: *Rogers v Home Department State Secretary* [1973] AC 388 at 406-7; [1972] 2 All ER 1057. Moreover, the rule which permits secondary evidence of a privileged document to be adduced is inapplicable to documents which are the subject of a claim for public interest immunity.

See also

Informer at [9.2300].

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